

Tenancy Agreement and Obligations Policy

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1. Purpose and Scope

This policy governs the formation, execution and management of all Tenancy Agreements entered into by DataCompany Housing Management and residential tenants. It outlines the legal basis for each tenancy, the obligations of both landlord and tenant, the process for varying or ending a tenancy, and the consequences of breaching obligations. The policy should be read alongside the signed Tenancy Agreement and all referenced DataCompany policies.

2. Types of Tenancy Offered

Tenancy Type	Duration	Typical Use Case	Break Clause
Fixed-Term Tenancy	6 or 12 months	Standard new lettings	Negotiable after month 4
Periodic Tenancy	Month-to-month (rolling)	Following end of fixed term	1 month written notice
Short-Term Occupancy	Up to 3 months	Temporary housing solutions	2 weeks written notice
Supported Housing Tenancy	12 months renewable	Tenants requiring support services	By agreement with Support Team

3. Tenancy Agreement Formation

3.1 Pre-Tenancy Requirements

- All prospective tenants must complete a formal application and provide proof of identity (national ID or passport) and proof of income or affordability.
- A credit and reference check will be conducted by DataCompany. Results are kept confidential and used solely for tenancy assessment purposes.
- Security deposit equivalent to one month's rent must be paid in full before the tenancy commences (refer to DC-POL-004).
- The first month's rent is payable in advance on the date of signing or occupation, whichever is earlier.
- Where joint tenants are involved, all named tenants must sign the Tenancy Agreement and all are jointly and severally liable for rent and obligations.

3.2 Agreement Content

Every DataCompany Tenancy Agreement includes as a minimum: names of all tenants and the landlord's agent (DataCompany), full property address, commencement and end date, monthly rent amount and review

mechanism, list of included furnishings and appliances, reference to all applicable DataCompany policies, signature section and date, and a property condition schedule.

4. Tenant Obligations

4.1 Financial Obligations

- Pay rent in full and on time in accordance with DC-POL-001.
- Pay all service charges and levies as set out in the Tenancy Agreement.
- Maintain the property in a clean and hygienic condition throughout the tenancy.
- Meet the cost of any damage caused by the tenant or their guests (beyond fair wear and tear).

4.2 Property Use Obligations

- Use the property solely as a private residential dwelling and not for any business, commercial or industrial purpose without prior written consent.
- Not alter the internal or external structure of the property without written consent (refer to DC-POL-007).
- Not sublet or assign the tenancy without written consent from DataCompany (refer to DC-POL-008).
- Comply with the Anti-Social Behaviour Policy (DC-POL-005) and ensure all household members and visitors do likewise.
- Keep the property adequately heated and ventilated to prevent condensation, mould and structural deterioration.
- Ensure refuse is disposed of in accordance with Harare City Council waste collection schedules and DataCompany communal bin policies.

5. DataCompany Obligations

- Provide the property in a clean, safe and habitable condition at the commencement of the tenancy.
- Carry out all landlord repairs and maintenance as required by law and this policy framework.
- Provide at least 24 hours written notice before entering the property for inspections or non-emergency works.
- Process the security deposit in accordance with DC-POL-004.
- Respect the tenant's right to quiet enjoyment of the property.
- Provide transparent and accurate rent statements and respond to queries within 5 working days.
- Issue legally compliant notices for any tenancy actions including rent increases, inspections, and terminations.

6. Tenancy Renewals and Ending a Tenancy

6.1 Fixed-Term Renewal

DataCompany will contact tenants 60 days before the end of a fixed-term tenancy to confirm renewal intent. Where both parties agree to continue, a new Tenancy Agreement is issued and signed. Where neither party acts, the tenancy automatically converts to a periodic tenancy on the same terms.

6.2 Notice to Vacate by Tenant

Tenants wishing to end the tenancy must give written notice as follows: Fixed-term tenancy - minimum 1 month written notice before expiry date; Periodic tenancy - minimum 1 calendar month written notice at any time. Notice must be given in writing to DataCompany via the portal, email or registered post. Verbal notice is not accepted.

6.3 Notice to Vacate by DataCompany

DataCompany may end a tenancy on legal grounds including: non-payment of rent, serious or persistent breach of tenancy conditions, property required for major renovation, or sale of the property. A minimum of two months' written notice will be issued except in cases of serious anti-social behaviour or illegal activity where expedited processes apply. Refer to DC-POL-010 for full eviction procedures.

7. End of Tenancy Procedure		
Stage	Action	Timeframe
1. Notice Period	Tenant provides notice; DataCompany acknowledges in writing	On notice receipt
2. Pre-Departure Inspection	DataCompany arranges joint inspection of property condition	2-4 weeks before end date
3. Dilapidations Schedule	Any damage beyond fair wear and tear is documented	At inspection
4. Final Day	Keys returned; property vacated by 10:00am on end date	On tenancy end date
5. Post-Departure Inspection	DataCompany conducts full condition survey	Within 3 working days
6. Deposit Settlement	Deposit returned or deductions notified in writing	Within 14 working days